

# 100 BEAL STREET AFFORDABLE HOUSING

Executive Situation Summary • Hingham, Massachusetts

Parcel: School Tract II (6.5 Acres)  
Target: 68 Senior Housing Units (Ages 62+)  
Briefing: Version v1 • Sep 2026

|                                              |                                                        |                                                      |                                                         |
|----------------------------------------------|--------------------------------------------------------|------------------------------------------------------|---------------------------------------------------------|
| PROPOSED SCOPE<br>68 Units (100% Affordable) | SELECTED DEVELOPER<br>Peabody Properties (99-Yr Lease) | PERMITTING TRACK<br>M.G.L. Chapter 40B Comprehensive | PRIMARY SENSITIVITY<br>Tucker's Swamp & Back River ACEC |
|----------------------------------------------|--------------------------------------------------------|------------------------------------------------------|---------------------------------------------------------|

## 1. Project Scope & Selection

The **Hingham Housing Authority (HHA)** is developing a 6.5-acre portion of 100 Beal Street (School Tract II) for low- and moderate-income seniors (62+).

- **Developer Partner:** Peabody Properties was selected under a 99-year ground lease and Land Disposition & Development Agreement (LDDA).
- **Scale Escalation:** Initially studied at ~25–40 units, financial feasibility and Low-Income Housing Tax Credit (LIHTC) thresholds expanded the scope to **68 units** in a 3-story residential building.
- **Financing:** State Chapter 689 funding, Mass EOHLC housing subsidies, and tax credit equity.

## 2. Legal & Municipal Disputes

- **Town vs. Housing Authority Friction:** In Feb 2019, the Select Board voted (3–0 in executive session) to authorize litigation against HHA to enforce a 2001 MOU regarding town co-determination of the parcel.
- **State Statutory Encumbrance:** Mass EOHLC/DHCD holds a recorded *Notice of Statutory Transfer Restriction* (Book 51379, Page 244) under M.G.L. c. 121B § 34, prohibiting diversion to municipal general town use without state approval.
- **Zoning & Chapter 40B:** The site is zoned Official & Open Space (OO). Because municipal zoning bars multi-family housing, development requires a Chapter 40B Comprehensive Permit from the Zoning Board of Appeals (ZBA). Hingham’s >10% Subsidized Housing Inventory gives the Town safe harbor leverage.

## 3. Ecological & Watershed Sensitivity

The parcel abuts the 484-acre **Bare Cove Park** wildlife sanctuary and critical coastal headwaters:

- **Tucker's Swamp Headwaters:** A sensitive freshwater peat bog directly adjacent to the proposed building footprint, home to historic Great Blue Heron nesting.
- **Hockley Run Salinity:** Hockley Run is one of only three freshwater tributaries feeding Beal's Cove and the Weymouth Back River ACEC, critical for migrating river herring (*Alosa pseudoharengus*).
- **Conservation Commission Delineation:** In late 2024, the ConCom approved the Order of Resource Area Delineation (ORAD MassDEP #034-1509) 5–0, imposing strict 100-ft buffer and 50-ft no-build zones.

## 4. Core Historical Milestones

- |      |                                                                               |
|------|-------------------------------------------------------------------------------|
| 1989 | Town conveys School Tract II deed to HHA with affordable housing covenants.   |
| 2001 | Town & HHA execute MOU to cooperatively master-plan Beal Street properties.   |
| 2019 | Select Board votes litigation; state registers deed restriction encumbrance.  |
| 2024 | HHA issues RFP; Conservation Commission approves resource delineation.        |
| 2025 | Peabody Properties awarded developer rights; engineering by Weston & Sampson. |
| 2026 | Town Meeting rejects Bare Cove swap articles; HHA advances 68-unit LDDA.      |

## Current Status & Permitting Outlook

HHA and Peabody Properties are executing the Land Disposition & Development Agreement (LDDA) to submit their formal Chapter 40B Comprehensive Permit to the Hingham ZBA. Primary public scrutiny centers on civil stormwater controls, parking footprint proximity to Tucker's Swamp, and traffic mitigation along Beal Street.